DIVORCE LAWS FOR HINDUS

- Under the Hindu Marriage Act, 1955, the husband or wife can seek divorce on nine grounds. There are four additional grounds available to the wife
- Both husband and wife are legally entitled to claim alimony and maintenance. The wife can also claim maintenance under Section 18 of the Hindu Adoptions and Maintenance Act, 1956

DIVORCE LAWS FOR MUSLIMS

- Under Islamic law, divorce is classified into three categories: *talaq* or divorce at the instance of the husband; *khula* or divorce at the instance of the wife; and *mubaraat*, divorce by mutual consent. The husband can delegate the power to pronounce *talaq* to the wife to any third person by an agreement
- The Muslim Women (Protection of Rights on Marriage) Act, 2019, has made *talaq* by the husband an illegal and punishable offence. So if a Muslim husband now wants a divorce, he must get the *talaq* validated before a family court
- Muslim women have legal recourse apart from traditional modes of separation. The Dissolution of Muslim Marriages Act, 1939, sets out nine grounds on which a Muslim woman can seek dissolution of marriage
- According to Sharia, Muslim women are given absolute right to alimony and maintenance. The right remains unprejudiced even if the wife has good financial standing and the husband is poor

DIVORCE LAW FOR CHRISTIANS

- Divorce among Christians is governed by the Indian Divorce Act, 1869. The husband/ wife can seek divorce on nine grounds. The wife can seek divorce if the husband commits rape, sodomy or bestiality. Only a wife can claim maintenance and alimony

DIVORCE LAW FOR SIKHS

- Anand Marriage (Amendment) Act, 2012 is silent on provisions of divorce

DIVORCE LAW FOR PARSIS

- There are 10 grounds for divorce and either spouse may seek it under the Parsi Marriage and Divorce Act, 1936. That said, only a wife has the right to claim maintenance and alimony

HINDU, BUDDHIST, AND JAIN

Governing law: Hindu Marriage Act, 1955

● 9 ● 4

○ Yes

CHRISTIAN

Governing law: Indian Divorce Act, 1869

● NA ● NA

○ Only for wife

SIKH

Governing Law: Anand Marriage (Amendment) Act, 2012

● NA ● NA

○ NA

MUSLIM

Governing law: The Muslim Personal (Shariat) Application Act, 1937, and the Dissolution of Muslim Marriages Act, 1939

● Under Shariat, husband doesn't need to give reasons

● 9 ○ Only for wife

PARSI

Governing law: Parsi Marriage and Divorce Act, 1936

● 10 ● NA

○ Only for wife

● Grounds for seeking divorce for both spouses

● Additional grounds available to wife

○ Right to alimony and maintenance for both spouses

HOW INHERITANCE LAWS WILL CHANGE

Muslim and Parsi daughters still do not have the equal right to inheritance. The UCC may change that. It may also grant the right to children born out of wedlock

SUCCESSION LAWS FOR HINDUS

- The Hindu Succession Act, 1956 allows the provision to write a will. In case of a legally accepted will, laws of inheritance don't apply. In the absence of a will, property can devolve through the law of inheritance
- Daughters have right to equal share